

**STATE OF VERMONT
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

In re: Judd Walbridge
License No. 100-52

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Docket No. MFT01-1207

**Decision on
UNPROFESSIONAL CONDUCT CHARGE**

Board Members Participating:
Paul Sahba, LCMHC, Chair
Marilyn Turcotte, LCMHC
Emma Pudvah (ad hoc)
Marjorie Trombly, Rostered Psychotherapist
Edmund G. Fischer

Appearances:
for Petitioner, State of Vermont: Edward G. Adrian
for Respondent: Norman Blais

Presiding Officer: Larry S. Novins

**FINDINGS OF FACT, CONCLUSIONS OF LAW,
AND ORDER**

The Board of Allied Mental Health Practitioners held a hearing in the above matter on December 18, 2008 at the Office of Professional Regulation hearing room at the National Life Building in Montpelier, Vermont.

The prosecution has the burden of proof in this matter. To prevail on any unprofessional conduct charge, it must prove the charge by a preponderance of the evidence.

Background

The prosecution alleges in its Amended Specification of Charges that Mr. Walbridge was convicted of domestic assault and that the conviction constitutes unprofessional conduct. Mr. Walbridge does not contest the fact of the conviction or that the Board may find unprofessional conduct. This hearing is limited to the issue of sanctions.

Findings of Fact

Based upon the evidence presented, the Board finds as follows:

1. Mr. Walbridge is licensed as a marriage and family therapist by and subject to the disciplinary authority of this Board. 26 V.S.A. § 4034(a)(4) and (5), 3 V.S.A. §§ 129, 129(a), and the Administrative Rules of the Board of Allied Mental Health Practitioners, and the Rules of the Office of Professional Regulation.
2. Mr. Walbridge has been under the jurisdiction of this board since being entered on the Roster of Non-licensed and Non-certified Psychotherapists in June 2005. He has been licensed as a marriage and family therapist since August 2007.
3. On August 22, 2008 Mr. Walbridge entered a *nolo contendere* plea to a charge of domestic assault, a misdemeanor. The domestic assault statute 13 V.S.A. § 1042 states: "[A]ny person who attempts to cause or wilfully or recklessly causes bodily injury to a family or household member, or wilfully causes a family or household member to fear imminent serious bodily injury shall be imprisoned not more than 18 months or fined not more than \$5,000.00, or both."
4. A stipulation filed with the Vermont District Court shows that the conviction was amended from an earlier charge of Aggravated Sexual Assault. Mr. Walbridge, through his attorney, said that he admitted the facts of the incident. In court he admitted the charge against him conceded and acknowledged there was evidence, if believed that a jury or other finder of fact could support the domestic assault allegation against him. Specifically, he conceded that there was evidence that "on or about January 30, 2006 Defendant struck J.M. in the face with his hand, and that such contact caused physical pain to J.M." Mr. Walbridge conceded that J.M. was a household member as defined by the statute.
5. J.M. was Mr. Walbridge's wife at the time of the domestic assault.
6. Mr. Walbridge admits that he slapped his wife, and is prepared to discuss that and his conviction with any client who might ask him about it.
7. Domestic assault is, by its definition, a crime of violence.
8. J.M. was not a patient/client.
9. Mr. Walbridge has been addressing issues of his own relationships in therapy during the last year.
10. For his conviction Mr. Walbridge was given a suspended sentence and placed on probation for two years with a condition that he complete the Domestic Abuse Education Program "or its equivalent."
11. Between the January 30, 2006 and one year ago Mr. Walbridge maintained a solo practice in a setting where he received regular peer supervision.
12. No client has made a complaint about Mr. Walbridge or his practice. Despite the notoriety of the charges filed against him, some of his patients still asked when they could see him again.
13. At the time Mr. Walbridge slapped his wife, in January of 2006, Mr. Walbridge worked in a practice closely with Leora Elizabeth Black, Ph.D. She is a licensed clinical mental health counselor and marriage and family therapist. She has served as a member of this Board in the past.
14. Ms. Black described Mr. Walbridge as being in a dysfunctional relationship with his wife. Despite the relationship Mr. Walbridge gave every appearance of keeping his personal life and practice separate.
15. Dr. Black described Mr. Walbridge's conduct before he suspended practice as meeting

- the highest standards of professional practice. She described him as one of the strongest candidates for licensure she had seen in Vermont.
16. There is no indication that any of Mr. Walbridge's clients was adversely affect in any way by what had been going on in Mr. Walbridge's private life.
 17. When Mr. Walbridge was first charged with a crime, he voluntarily left his practice. The crime originally charged was aggravated sexual assault. The seriousness of the charge and threat of the potential sentence it could carry, up to life imprisonment, prompted Mr. Walbridge to voluntarily suspend his practice to attend to his legal affairs and personal health.
 18. Mr. Walbridge has been engaging in therapy. His therapy has involved issues arising from his relationship with his now ex-wife. He is now in the process of transferring his therapy to another provider who specialized in treatment of domestic violence.
 19. Even while Mr. Walbridge was not practicing, Dr. Black continued to receive positive feed back about Mr. Walbridge. She is ready and prepared to have him return to working with her in her practice. She believes he is now ready to re-assume the duties of a practicing marriage and family therapist.
 20. Dr. Black has seen his work, on video tape, in person, and in all aspects of his practice.
 21. Mr. Walbridge has had good relationships with clients of all ages and school.
 22. We note there have been no complaints by patients or clients of Mr. Walbridge.
 23. Mr. Walbridge appeared forthright and honest as he described his experience since being charged with a crime, an experience he termed his "personal crucible." He described his past practice and his desire to resume practice. We note that Mr. Walbridge could have resumed practice before this hearing without any Board intervention.
 24. Mr. Walbridge felt that when he resumes his practice he would not take on cases that involved domestic violence or marriage issues. Those areas would wait until his personal growth would allow him to practice without his personal experiences affecting him and his practice.

Conclusions of Law

We conclude that while the crime of domestic assault is conduct that a marriage and family therapist could be expected to see and respond to in his or her practice, it is not a crime related to how one actually practices the profession. We conclude that domestic assault is not a crime related to the *practice* of the profession of marriage and family therapy. 3 V.S.A. § 129a(a)(3). We find that there was no violation of 3 V.S.A. § 129a(a)(3).

For a marriage and family therapist to engage in the type of conduct he or she is expected help others avoid and overcome is, to say the least, problematic. The parties have agreed that this Board may impose a sanction in this case, we do so under 26 V.S.A. § 4042(a)(2) which includes as part of the definition of unprofessional conduct "conduct which evidences moral unfitness to practice marriage and family therapy."

Order

For the unprofessional conduct found Mr. Walbridge's license shall be conditioned as

follows:

- Conditions:
- 1) Mr. Walbridge shall work with supervision of one hour per week provided by a marriage and family therapist, clinical mental health counselor, psychologist or psychiatrist pre-approved by the Board. Supervision may include video or audio recordings of his therapy sessions, if deemed appropriate by his supervising professional. His supervisor shall provide quarterly reports to the Board outlining the supervision provided and its focus and calling to the Board's attention any areas of concern to the supervisor.
 - 2) Mr. Walbridge shall comply with all conditions of his probation, including continued therapy as directed.
 - 3) At the end of his probation in his criminal case, Mr. Walbridge may petition the Board to remove these conditions. If the Board determines that Mr. Walbridge has been practicing in an acceptable manner, the conditions will be terminated.

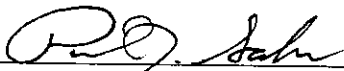
APPEAL RIGHTS

This is a final administrative determination by the Vermont Board of Allied Mental Health Practitioners.

A party aggrieved by a final decision of a board may appeal this decision by filing a written Notice of Appeal with the Director of the Office of Professional Regulation, Vermont Secretary of State, National Life Bldg., North, FL2, Montpelier, VT 05620-3402 within 30 days of the entry of this order.

If an appeal is filed, the Director of the Office of Professional Regulation shall assign the case to an appellate officer. The review shall be conducted on the basis of the record created before the board. In cases of alleged irregularities in procedure before the board, not shown in the record, proof on that issue may be taken by the appellate officer. 3 V.S.A. §§ 129(d) and 130a. To request a stay of the Board's decision, please refer to the attached stay instructions.

Vermont Board of Allied Mental Health Practitioners

By: 
Paul Sahba, LCMHC, Chair

Dated: 1-15-09

OFFICE OF PROFESSIONAL REGULATION

DATE OF ENTRY: 1/15/09